

**CFI 058/2024 Atul Dhawan Ashok Amir Chand Dhawan v Ramzi Wahib El Jaouhari**

JANUARY 21, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No. CFI 058/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

ATUL DHAWAN ASHOK AMIR CHAND DHAWAN

Claimant

and

RAMZI WAHIB EL JAOUHARI

Defendant

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**AMENDED ORDER WITH REASONS OF H.E. JUSTICE ROGER STEWART KC**

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**UPON** the Part 7 Claim Form filed on 21 August 2024 (the “Claim”)

**AND UPON** the Order with Reasons of H.E. Justice Roger Stewart KC dated 29 October 2025 (the “Order”)

**AND UPON** the Claimant filing Re-Amended Particulars of Claim on 12 November 2025

**AND UPON** the Defendant filing a “Response to the Amended Statement of Claim” on 25 November 2025 (the “Defendant’s Amended Defence”)

**AND UPON** the Claimant’s Application No. CFI-058-2024/3 dated 10 December 2025 for an extension of time to file a reply to the Defendant’s Amended Defence (the “Claimant’s Application”)

**AND UPON** the Defendant’s objection to the Claimant’s Application dated 12 December 2025 (the “Defendant’s Objection”)

AND UPON the Claimant replying to the Defendant's Objection dated 12 December 2025

AND UPON the Claimant filing a 'Reply to the Defendant's Re-Amended Particulars of Claim' dated 17 December 2025

AND PURSUANT TO the Rules of the Courts of the DIFC ("RDC")

IT IS HEREBY ORDERED THAT:

1. The Claimant's Application is granted.
2. The costs of the Claimant's Application are to be paid by the Defendant to the Claimant in any event and will be summarily assessed following:
  - (a) The Claimant providing a statement of its costs together with any brief submissions in writing by no later than 4pm (GST) on 27 January 2026;
  - (b) The Defendant either agreeing the same or responding with any brief objections by no later than 4pm (GST) on 3 February 2026; and
  - (c) The Claimant responding to the same by no later than 4pm (GST) on 6 February 2026.

Issued by:

**Hayley Norton**

Assistant Registrar

Date of issue: 15 January 2026

Date of re-issue: 21 January 2026

At: 8am

### SCHEDULE OF REASONS

1. The relevant background and essential procedural position are summarised in the reasons accompanying the Order of 22 September 2025 and the reasons accompanying the Order.

#### Extension of Time

2. Under the provisions of the Order, the Reply was due to be served by 8 December. The Registry granted an extension of 2 days until 10 December. The Claimant seeks a further extension to take account of the fact that a medical emergency involving a close family member required him to travel to India at short notice and his usual assistant was stranded in Sri Lanka by flooding. In the event the Reply was served on 17 December.

3. I consider that the Defendant should have consented, in the circumstances, to the relatively modest extension sought. I do not consider any of the grounds of objection have any real validity.

#### Costs

4. I consider the Defendant's conduct, both in opposing the requested extension to have been unreasonable. He should therefore pay the costs of the Claimant's Application.

## General Matters

5. In the Order, I set out reasons why I believed that it was appropriate for there to be a serious attempt to settle this matter and gave directions as to its future conduct. Given the modest sums at issue and the behaviour of the parties, I continue to consider that the directions given were appropriate. The parties should now comply with those directions.